

GROUND LEASE

by and between

SUNSET-MIAMI INVESTMENTS, INC.,
a Florida Corporation
("Landlord")

and

_____,
a _____,
("Tenant")

6075 Sunset Drive
South Miami, Florida

GROUND LEASE

This Ground Lease (the “**Lease**”) is made as of this ____ day of April, 2018 by and between **SUNSET-MIAMI INVESTMENTS, INC.**, a Florida corporation (“**Landlord**”), whose address is 1313 Ponce de Leon Boulevard, Suite 200, Coral Gables, Florida 33134, Attention: G. Frank Quesada, Esq., and _____, a _____ (“**Tenant**”), whose address is c/o ALTA Developers LLC, 2950 SW 27th Avenue, Suite 220, Miami, Florida 33133, Attention: Henry Pino.

WITNESSETH:

WHEREAS, Landlord is the owner of certain land located at 6075 Sunset Drive in South Miami, Florida, as more particularly described on Exhibit “A” (the “**Land**”) and the improvements presently located thereon (the “**Existing Improvements**”); and

WHEREAS, Tenant desires to lease the Real Estate (as hereinafter defined) from Landlord and Landlord desires to lease the Real Estate to Tenant for the purpose and upon the terms and conditions hereinafter set forth.

NOW, THEREFORE, in consideration of the mutual promises and agreements set forth below, and other good and valuable consideration, the receipt and adequacy of which are hereby acknowledged, Landlord and Tenant agree that the foregoing recitals are true and correct and further agree as follows:

ARTICLE 1

Certain Definitions

For the purposes of this Lease, unless the context otherwise requires, the following words and terms shall have the meanings indicated:

Additional Rent: as defined in Section 4.5.

Base Rent: as defined in Section 4.1.

how soon after will they start building

Building Permit: means that certain Building Permit issued for the vertical construction of the Project (as opposed to demolition of the Existing Improvements or grading of the Land) pursuant to the Development Agreement.

Claims: as defined in Section 10.2.

Where is it?

Development Agreement: that certain Development Agreement entered into by and among Landlord, Tenant and the City of South Miami, Florida.

Effective Date: the date that this Lease is fully executed by each of Landlord and Tenant.

Escrow Agent: Quesada Valdes, PLLC.

Escrow Agreement: that certain Escrow Agreement dated as of the Effective Date by and among Landlord, Tenant and Escrow Agent. _

Escrowed Funds: the Initial Deposit, the Additional Deposit, the Third Deposit (as and when delivered) together with all interest earned thereon.

Event of Default: as defined in Section 16.1.

Existing Improvements: as defined in the Recitals.

Existing Loan Documents: those certain documents evidencing the loan secured (in part) by the Existing Mortgage.

Existing Mortgage: that certain Florida Real Estate Mortgage and Security Agreement executed by Landlord, as mortgagor, in favor of Gulf Bank, mortgagee, recorded February 2, 1998 in Official Records Book 17965, Page 1608, as assigned to Pan American Bank by the Assignment of Mortgages recorded in Official Records Book 22957, Page 3176, as amended by the Note and Mortgage Modification Agreement recorded in Official Records Book 26517, Page 477, and as further assigned to Existing Mortgagee by the Assignment recorded in Official Records Book 27601, Page 467, all of the Public Records of Miami-Dade County, Florida, as the same may be amended from time to time in accordance with the terms of this Lease.

Existing Mortgagee: First-Citizens Bank & Trust Company.

Expiration Date: the last day of the Term.

First Adjustment Year: as defined in Section 4.2.

First Offer Right: as defined in Section 19.2.

Force Majeure: means the following events: strikes, acts of God, enemy action, civil commotion, fire or other casualty, unusual inclement weather, governmental restrictions, regulations or controls or any other cause, whether similar or dissimilar to the foregoing, beyond the reasonable control of Tenant.

Furniture and Equipment: means all furniture, furnishings, wall coverings, fixtures, equipment, machinery, systems inventory and/or any other items of person property located at, or used in connection with the Premises (excluding building systems such as the HVAC system), including without limitation material handling equipment; cleaning and engineering equipment; telephone systems; computerized accounting systems; and vehicles.

Hazardous Material: as defined in Article 10.

Impositions: as defined in Section 6.1.

Improvements: any and all buildings, structures and machinery, equipment and fixtures, which may at any time be erected or located on, or included within the Land during the Term. The term "Improvements" includes, but is not limited to, all buildings (including the Existing Improvements, the Project and any subsequent improvements), all footings, foundations, machinery, piping, sewers, retaining walls, landscaping, streets, sidewalks, equipment, apparatus and fixtures which are a part of the buildings within the Leasehold Estate, and all components of the heating, ventilating, air conditioning, plumbing and electrical systems and all partitions. The term "Improvements" will include any improvements to public property or property dedicated to public use which is adjacent to the Land.

Initial Deposit: Two Hundred Fifty Thousand and No/100 Dollars (\$250,000.00).

Interest Rate: means the "Prime Rate" from time to time announced by The Wall Street Journal (or its successor or a reasonable alternative source as designated by Landlord, if there is no successor) plus three percent (3%) per annum.

Landlord's Estate: as defined in Section 19.1.

Lease Year: each calendar year during the Term (collectively referred to as "Lease Years"). The Lease Year for the calendar year in which the Effective Date occurs shall commence on the Effective Date and end on December 31 of such calendar year. The Lease Year for the calendar year in which the Term expires shall commence on January 1 of such calendar year and end on the Expiration Date.

Leasehold Estate: all of the estate, rights and interest of Tenant in and to the Real Estate and the Fixtures and Equipment and any other rights of Tenant, in each case arising under or growing out of this Lease.

Leasehold Mortgage: any mortgage, pledge, encumbrance or other security interest granted from time to time encumbering all or any part of the Leasehold Estate.

Leasehold Mortgagee: any party that is the holder of any Leasehold Mortgage.

Legal Requirements: all laws, statutes, ordinances, regulations, building codes, zoning codes and regulations and the orders, judgments, rules, regulations and requirements of all federal, state, local and municipal governments, and the agencies, officers, departments, boards, commissions and courts thereof, whether now or hereafter in effect, which are or later become applicable to the Leasehold Estate or any part thereof or to the use or manner of use of all or any part of the Leasehold Estate.

Memorandum of Lease: the Memorandum of Lease attached hereto as Exhibit "C".

Offer Notice: as defined in Section 19.2.

Offer Price: as defined in Section 19.2.

Offer Terms: as defined in Section 19.2.

Project: as defined in Section 3.2.

Real Estate: Land together with Improvements.

Rent: collectively, Base Rent and Additional Rent.

Second Deposit: Two Hundred Fifty Thousand and No/100 Dollars (\$250,000.00).

Term: as defined in Article 2.

Third Deposit: One Million Five Hundred Thousand and No/100 Dollars (\$1,500,000.00).

Transfer: any voluntary or involuntary assignment, sale, issuance, or transfer of any direct or indirect, legal or beneficial interest in Tenant or the Leasehold Estate.

ARTICLE 2

Demised Premises and Term; Title

Section 2.1 Landlord, in consideration of the rents and covenants hereinafter specified to be paid, kept and performed by Tenant, hereby demises and leases to Tenant, and Tenant hereby takes and hires from Landlord, the Leasehold Estate.

TO HAVE AND TO HOLD the same upon the terms, conditions and covenants hereinafter set forth for a term commencing on the Effective Date, and expiring _____, 2117 [NTD: INSERT THE DATE THAT IS 99 YEARS FOLLOWING THE EFFECTIVE DATE] (the “Term”), unless sooner terminated as hereinafter provided.

Section 2.2 The Leasehold Estate is leased subject only to the matters shown on Exhibit “B”, and to all zoning regulations, restrictions, rules and ordinances, and all building restrictions and other laws and regulations now in effect or hereafter adopted by any governmental authority having or acquiring jurisdiction.

Section 2.3 Landlord and Tenant acknowledge that during the Term, Tenant shall have title (for all purposes) to any Improvements which are part of the Leasehold Estate. Landlord and Tenant further agree that Tenant’s ownership of the Leasehold Estate and such Improvements shall be non-separable. Upon the Expiration Date or sooner termination of this Lease, title to and ownership of all Improvements shall automatically vest in Landlord.

ARTICLE 3

Operation of Existing Improvements; Construction of Improvements on the Land

Section 3.1 Operation of Existing Improvements. From and after the Effective Date Tenant shall take possession and control of the Existing Improvements and shall receive all income, rents and revenue generated by the Land and the Existing Improvements and Landlord agrees to promptly provide to Tenant any such amounts received by Landlord promptly following the date of such receipt. Further, from and after the Effective Date until the date that Tenant elects to discontinue operation of the Existing Improvements in advance of construction of the Project, which date shall in no event be earlier than (x) the date that Tenant has obtained the Building Permit (as hereinafter defined), and (y) the date that all of the contingencies set forth in Article 21 of this Lease have been satisfied or waived by Landlord and/or Tenant, as applicable.

nor later than

(a) During Tenant's period of control of the Existing Improvement, the Tenant shall:

(a) maintain and manage the Real Estate substantially consistent with the same quality of management, maintenance, ~~rental rates~~ and operation as provided by the Landlord prior to the Effective Date; provided, however, notwithstanding anything to the contrary contained in the preceding clause or otherwise in this Lease, Tenant shall have complete ~~reasonable~~ discretion and control with regards to the leasing of the Existing Improvements, including without limitation, termination of leases, execution of new leases, renewals or modifications of leases, and determining rental ~~rates~~. During the operation and management by Tenant of the Existing Improvements, no new lease, or existing lease renewal, shall exceed a term of two ~~(2 years, nor shall any rental rate be set at less than lowest rental rate of any existing lease prior to the Effective Date of this Lease.)~~ years;

what if lease signed at low rent and we take building back?

(b) assume and pay all maintenance, expenses, liabilities, taxes and insurances as required by this triple net Lease;

lower rent has to be month-to-month

(c) upon Landlord's written request, which shall in no event be provided more often than two (2) times per calendar year, provided Landlord with all reasonable information regarding the tenants, their lease termination dates;

(d) maintain and upkeep all licenses, permits, insurance coverages and certificates required by any Legal Requirements for the operation and maintenance of the Real Estate;

(e) not undertake any alterations or modifications of the Real Estate without the Landlord's prior written consent, which consent shall not be unreasonably withheld, conditioned or delayed; provided, however, that no prior written consent shall be required in the event of an emergency; and

(f) maintain accurate and detailed (in accordance with its usual and customary practices) records of repair and maintenance, including accounting records, which records shall

be delivered to Landlord in the event the Leasehold Estate is returned to the Landlord in accordance with the terms of this Lease. Tenant shall also deliver this information to Landlord as per (c) above.

(g) The terms of this Section 3 shall not be interpreted to create any liability upon the Landlord for Tenant's operation, maintenance and control of the Real Estate. ~~It is only the intent of the Landlord that the Tenant operates and run the Real Estate in a reasonably commercial manner and remains responsible for the Real Estate's maintenance and upkeep.~~

what's wrong with this?

Section 3.2 Construction of Improvements on the Land.

(a) This Lease is being made on the express condition that Tenant demolishes the Existing Improvements and constructs and develops ~~the Project. The Project consists of an eight (8) story residential apartment building with retail space and structured parking and other related uses, improvements and amenities, all consisting of approximately 85,000 rentable square feet. A more detailed description of the Project, the components and the proposed size, configuration, height and amenities of the components, and the current site plan, is set forth in the Schematic Design Documents and is set forth on Exhibit _____ attached hereto and made a part thereof, and is defined in this Lease as the "Project" (the "Project").~~

We need to know specifics why not?

(b) To accomplish the development of the Project, Tenant shall demolish the Existing Improvements on the Land and construct or cause to be constructed, subject to the terms of this Lease, the Project. It is the intention of the parties that Tenant has the maximum control, flexibility and discretion over the demolition, construction and development of the Project and subsequent operation of the Real Estate during the Term, subject only to the specific prohibitions and limitations contained herein. Landlord acknowledges and agrees that, except as expressly provided herein, it is the passive recipient of Rent during the Term, and is not, and shall not be deemed, construed to be or treated as a partner, joint venturer or participant with or in Tenant. Accordingly, except as expressly provided herein, Landlord shall not have any approval or consent rights with respect to the Project or the future operation of the Real Estate, including without limitation approval of changes to any of the plans, architect, contractor, or future changes to the Real Estate.

(c) The Tenant has the right, during the Lease term, to construct the Improvements, to make such changes and alterations, structural or otherwise, to the Improvements as Tenant shall deem necessary or desirable. The Improvements shall be constructed in **substantial** accordance with the Development Agreement approved by the City of South Miami. The Improvements, ~~changes, alterations, demolition or new construction (collectively referred to as "Improvements")~~ shall be made in all cases subject to the following conditions that Tenant covenants to observe and perform:

(i) No Improvements shall be undertaken until Tenant shall have procured and paid for all municipal and other governmental permits and authorizations of the various municipal departments and governmental subdivisions having jurisdiction ~~and Landlord agrees, at no cost to Landlord, to join in the application for such permits or authorizations whenever such action is necessary;~~

~~(ii) All Improvements shall be conducted under the supervision of an architect or engineer licensed in Florida selected by Tenant and plans therefore shall be submitted to Landlord, in order to give Landlord an opportunity to determine that such Improvements will comply with the provisions of this Article;~~ (iii) Tenant shall, prior to the commencement of demolition and construction submit to Landlord a complete set of building plans as submitted to the City to obtain the Building Permit ~~and the Construction Budget for the Project. The Landlord must grant its reasonable approval of such Construction Budget, unless the Tenant secures construction financing from an institutional lending institution for the Improvements, in which event no approval of the Budget by Landlord shall be required.~~ (iv) Tenant shall not commence any demolition of the Existing Improvement until Tenant has delivered to Landlord, a firm loan commitment from an institutional lending institution and proof of funds of any equity requirements from the Tenant by such lending institution demonstrating to Landlord's reasonable satisfaction, that Tenant has sufficient funds available to commence and complete the Project.

(v) ~~iii~~ All work done in connection with any Improvement shall be done in a good and workmanlike manner and in substantial compliance with all applicable laws, ordinances, orders and requirements of all federal, state and municipal governments and their appropriate departments, commissions, boards and officers. The cost of any such Improvement shall be paid in cash or its equivalent, so that the ~~Landlord~~ Land and the Improvements shall at all times be free of liens for labor and materials supplied or claimed to have been supplied. ~~The work of any Improvements shall be prosecuted with reasonable dispatch.~~

~~(vi) Tenant shall, prior to the commencement of any such Improvement, at Tenant's sole cost and expense, furnish to Landlord a surety company performance and completion bond in form and substance acceptable to Landlord, issued by a surety company acceptable to Landlord and any Institutional Leasehold Mortgagee, naming Landlord and any first lien Institutional Leasehold Mortgagee as the obliges thereunder, guaranteeing the completion of construction of the Project Improvements in accordance with the approved plans and specifications within a reasonable time, free and clear of all mechanics' liens or liens of a similar nature.~~

~~(vii) Tenant covenants and agrees to construct the improvements, in accordance with all of the provisions of this Lease, with the demolition of existing Improvements and construction of the Project to be commenced no later than eighteen (18) months following the Effective Date of this Lease, and to complete the same (as evidenced by a duly executed and recorded notice of completion for all such Improvements) not later than, except for Force Majeure thirty-six (36) months from the Effective Date of this Lease. In the event demolition of the existing Improvements and construction of the Improvements stops or is terminated for a continuous period of more than ninety (90) days after the commencement of such work, except for Force Majeure, the same shall, at the option of Landlord, constitute an Event of Default.~~ What alternative does tenant What time frame then? can't be open ended

(viii) ~~(iv)~~ In connection with the construction of the Project (and any subsequent Improvements), Tenant shall have all rights of an owner of real property in Miami-Dade

County, Florida, including without limitation the right to require the creation of such easements, dedications and restrictive covenants as may be necessary or desirable in order to develop the Project and any subsequent Improvements. Landlord agrees to support Tenant, and to cooperate with Tenant, at Tenant's expense, in obtaining all approvals required by applicable law in connection therewith, including without limitation executing or joining in the execution of (for the purpose of subordinating its interests to the effects of such documentation) such applications, consents, approvals, easements, dedications, covenants and other documentation (the form and content of which shall be subject to Landlord's reasonable approval) in Landlord's name as may be necessary, required or desirable for the Project, (so long as such document could not result in the loss or forfeiture of Landlord's fee estate if any sum is due and not paid thereunder). Landlord shall execute (or cause to be executed) all such documentation within ten (10) days of Tenant's written request therefor. In the event Landlord has not executed such documents within 30 days of Tenant's written requests, then Landlord hereby appoints Tenant as Landlord's attorney-in-fact to execute and deliver in the name of Landlord any such documentation upon Landlord's failure to do so.

Section 3.3 Title to Improvements. All Improvements during the Term of this Lease shall be and remain the property of Tenant. Upon the expiration or earlier termination of this Lease the fee ownership of the Improvements shall vest automatically in Landlord, without further action of the parties.

ARTICLE 4

Deposit; Base Rent

Section 4.1 Prior to the Effective Date, Tenant provided Escrow Agent with the Initial Deposit ~~of \$250,000.00.~~ Within three (3) Business Days following the Effective Date, Tenant shall deposit the Second Deposit with the Escrow Agent ~~in the amount of \$250,000.00.~~ Within three (3) Business Days following the issuance of the Building Permit by the City of South Miami, Florida unless this Lease has been terminated, Tenant shall deposit the Third Deposit with the Escrow Agent ~~in the amount of \$1,500,000.00.~~ The Escrowed Funds shall be held and disbursed by the Escrow Agent pursuant to the terms of the Escrow Agreement.

Redundancy does not hurt

Section 4.2 Tenant covenants to pay Landlord an initial net annual rent during the period of construction, in addition to the other payments to be made by Tenant as hereinafter provided, in the amount of Two Hundred Fifty Thousand and No/100 Dollars (\$250,000.00) (said net annual ~~rental~~ rent being hereinafter sometimes called "**Base Rent**"), payable monthly in advance in the amount of Twenty Thousand Eight Hundred Thirty Three and 33/100 Dollars (\$20,833.33) per calendar month, commencing on the first day of _____, 2018 and on the first day of each calendar month thereafter ~~until the Initial Base Rate Completion Adjustment Date (as hereinafter defined).~~ ~~In the event the Effective Date does not occur on the 1st of the month, then Tenant shall pay Landlord the prorated rent for the number of days until the 1st of the following month.~~ The annual Base Rent (and the monthly Base Rent) shall be adjusted each Lease Year thereafter during the Term of this Lease as follows:

(a) ~~†The~~until the Initial Base Rate Completion Adjustment Date (as hereinafter defined), the Base Rent shall be adjusted annually on ~~the Base Rent Adjustment Date (each and every~~each anniversary of the Effective Date of this Lease)~~for each Lease Year~~ to an amount equal to the Base Rent payable during the immediately preceding twelve (12) month period increased by two percent (2%);

(b) ~~The~~effective as of the first day of the month following the day of issuance of a ~~temporary~~final certificate of occupancy from the City of South Miami, or any comparable ~~City~~ documentation permitting the Tenant to lease, sell or derive income from the Project ~~shall be (the "Initial Base Rent Completion Adjustment Rate". On (the "Initial Base Rent Completion Adjustment Date). Date the Initial Base Rent Completion Adjustment annual~~ Base Rent (and the monthly Base Rent) shall be Date"), the Base Rent shall be increased to a yearly net annual rent of Six Hundred Twenty-Five Thousand and No/100 Dollars (\$625,000.00), payable monthly in advance in the amount of Fifty-Two Thousand Eighty-Three and 33/100 Dollars (\$52,083.33) per calendar month on the first day of each calendar month thereafter; and

(c) effective as of the anniversary of the ~~of the~~ Initial Base Rate Completion Adjustment Date ~~(each such anniversary date being referred to herein as a "Base Rent Adjustment Date")~~, the Base Rent shall be adjusted on each anniversary of the Initial Base Rent Rate Completion Adjustment Date for each Lease Year to an amount equal to the Base Rent payable during the immediately preceding twelve (12) month period increased by two percent (2%).

Can be eliminated.
covered before

Base Rent shall be paid to Landlord at _____, Attention: _____, or at such other place as Landlord may from time to time direct by written notice to Tenant. If the Lease is terminated, ~~other than as a result of an Event of Default by Tenant~~, before the end of a Lease Year, the Base Rent for such Lease Year shall be proportionately reduced. In the event the Effective Date (or the Initial Base Rent Completion Adjustment Date) does not occur on the first day of the month, Base Rent shall ~~also~~ be prorated for the first month of the Term and any other partial calendar month included within the Term.

Section 4.3 Until such time as the City of South Miami, Florida issues the Building Permit, Tenant shall pay to Landlord, on or before the date that is five (5) days before the date the same is required to be paid to Existing Mortgagee, the current monthly installments of due under the Existing Mortgage and the promissory note secured thereby.

Section 4.4 If at any time during the Term, under the laws of the State of Florida or a political subdivision thereof, a tax or excise on rents or other tax however described, is levied or assessed by said state or a political subdivision thereof on any Rent hereunder, or against Landlord or Tenant with respect to the Rent, the parties mutually agree that Tenant (and not Landlord) shall be responsible to pay and discharge such tax or excise on rents or other tax before any fine, penalty, interest, or cost may be added thereto for the nonpayment thereof,

provided that Tenant shall not be in default for failing to pay such tax until thirty (30) days shall have expired from the date on which Landlord notified Tenant of the tax. Without limiting the foregoing, all payments under this Lease shall be accompanied by applicable sales tax (if any) which is payable under existing law. ← **Can I still pay sales tax directly?**

Section 4.5 Except for Base Rent, all amounts payable by Tenant to Landlord under other Articles of this Lease shall be deemed “**Additional Rent**” and shall be payable at the times specified in those Articles in the same manner as Base Rent.

ARTICLE 5

Net Lease

Section 5.1 This Lease is a triple net lease and the Rent payable hereunder to or on behalf of Landlord shall be paid without notice or demand, and without deduction, set-off or abatement, provided that Tenant’s waiver of its setoff rights is on the express condition that if Tenant believes Landlord is in default under this Lease, Tenant’s claim shall be resolved by a proceeding in arbitration under Article 23 (which, at Tenant’s option, may be conducted on an expedited basis under the Expedited Procedures or similar provisions of the applicable arbitration rules, notwithstanding that the amount in dispute may exceed \$50,000 or other minimum required amounts), and, if the arbitrator determines that Landlord is in default, the arbitrator shall award the right of set-off of Tenant’s damages against the next ensuing payments due to Landlord under the Lease.

Section 5.2 Except as otherwise expressly provided herein, this Lease shall not terminate, nor shall Tenant have any right to terminate this Lease or be entitled to the abatement of any rent or any reduction thereof, nor shall the obligations hereunder of Tenant be otherwise affected, by reason of any damage to or the destruction of all or any part of the Improvements from whatever cause, the prohibition, limitation or restriction of Tenant's use of the Land, or the interference with such use by any person or corporation, or for any other causes, whether similar or dissimilar to the foregoing, any present or future law to the contrary notwithstanding, it being the intention of the parties hereto that the Rent reserved hereunder shall not abate for any reason whatsoever during the Term of this Lease and shall continue to be payable in all events and the obligations of Tenant hereunder shall continue unaffected.

ARTICLE 6

Taxes and Other Charges

Section 6.1 Subject to Section 6.4 of this Article 6, Tenant covenants to pay, before delinquency and before any fine, penalty or interest may be added thereto for the nonpayment thereof, all real estate taxes, assessments, water rates and charges, and other governmental charges, general and special, ordinary and extraordinary, unforeseen as well as foreseen, of any kind and nature whatsoever, including but not limited to assessments for public improvements or benefits (all of which taxes, assessments, water rates or charges, levies, and other governmental

charges are hereinafter referred to as “**Impositions**”), that are assessed, levied, confirmed, or imposed, or that become a lien upon or become payable in respect of the Real Estate during the Term. If by law any such Imposition is payable, or may at the option of the taxpayer be paid, in installments, Tenant may pay the same in installments before the same respectively become due and before any fine, penalty or interest may be added thereto for the nonpayment of any such installment. Any Imposition relating to a calendar year, a part of which is included within the Term and a part of which is included in a period of time after the termination of this Lease, whether or not such Imposition shall be assessed, levied, confirmed, imposed, or become a lien upon the Real Estate, or shall become payable, during the Term, shall be adjusted as between Landlord and Tenant, so that Landlord shall pay that proportion of such Imposition which that part of such calendar year included in the period of time after the termination of this Lease bears to such calendar year and Tenant shall pay the remainder thereof. Tenant shall furnish Landlord with receipts or other evidence of such payments within thirty (30) days after written request.

Section 6.2 Nothing in this Lease contained shall require Tenant to pay any franchise, estate, inheritance, succession, capital levy, income, excess profits, revenue or transfer tax of Landlord.

Section 6.3 Tenant may pay any such Imposition under protest, and if it shall elect to procure a refund of all or any part of such Imposition so paid, may, at its own expense, take such action as it deems appropriate and any such action may be taken, filed, instituted, and prosecuted in the name of Tenant or Landlord, at no cost to Landlord. In the event that Tenant, as a result of any such action, shall recover any sums in the name of Landlord, such sums shall belong to Tenant (except for any amount payable for the period prior to or after the Term, which shall belong to Landlord). Tenant may also, in Landlord's name, but at no cost to Landlord, appeal the assessment of the Land or the Improvements by appropriate proceedings.

Section 6.4 Tenant shall not be required to pay, discharge, or remove any such Imposition so long as it shall proceed in good faith to contest the validity or amount thereof by appropriate legal proceedings that shall operate to prevent the collection of the Imposition so contested, or the sale of the Real Estate, or any part thereof, or to satisfy the same. While such legal proceedings are pending, Landlord shall not have the right to pay, remove or discharge the Imposition so contested. If Tenant shall fail to continue to contest the unpaid portion of such Imposition in good faith by appropriate legal proceedings that shall operate to prevent the collection thereof, or the sale or forfeiture of the Real Estate, or any part thereof, or to satisfy the same, Landlord may pay such Imposition, together with accrued penalties, interest and other charges, provided that Landlord provides Tenant with fifteen (15) days prior written notice of its intention to do so and Tenant fails to either provide reasonably satisfactory evidence that Tenant is pursuing such contest in good faith with reasonable diligence or to pay same before the expiration of said 15-day period. Such payment with interest thereon at the Interest Rate shall be Additional Rent due from Tenant to Landlord at the next rental payment day following such payment.

Section 6.5 Tenant shall be entitled to any refund of any such Imposition and penalties or interest thereon which have been paid by Tenant or which have been paid by Landlord and for which Landlord has been fully reimbursed by Tenant, provided that any amount payable for the period prior to or after the Term shall belong to Landlord.

Section 6.6 Tenant covenants to pay all public and private charges for water, sewer, electricity, gas, telephone and other utility services used in or upon the Real Estate from and after the date of this Lease.

ARTICLE 7

Use

Tenant shall have the right to use and occupy the Real Estate for any lawful purpose, provided that the initial use shall be for the purpose set forth in Article 3. ~~However, after the Project has been completed, the Tenant shall not substantially change the use of the Real Estate without Landlord prior written consent.~~

Ok. But can't demolish improvements

ARTICLE 8

INSURANCE

Section 8.1 [UNDER REVIEW] [From and after construction of the Improvements, Tenant shall insure the Improvements as required by Tenant's lender.] At all times Tenant shall keep the Improvements insured for the mutual benefit of Landlord and Tenant, and any Leasehold or Fee Mortgagee, against;

(a) loss or damage by fire, and such other risks as may be included in the standard form of extended coverage insurance from time to time available, including flood and windstorm, in an amount not less than one hundred percent (100%) of the then full insurable value of the Improvements; and

(b) claims for personal injury under a policy of general public liability insurance, with such limits to be not less than \$2,000,000.00 for any one (1) person and \$3,000,000.00 for any one (1) occurrence in respect of bodily injury or death.

(c) Claims for injuries and damages covered by Builders Risk and Worker's Compensations insurance.

(d) Business interruption insurance in an amount equal to the total amount of Base Rent for a period of 2 years resulting from interruption of business by a loss covered by insurance.

The term “full insurable value” shall mean the actual replacement cost of the Improvements (excluding foundation and excavation costs) and the “full insurable value” shall be determined by an architect, appraiser, appraisal company or one of the insurers, reasonably acceptable to Landlord, selected by Tenant, which determination shall be made no less frequently than once every three (3) years.

Section 8.2 All insurance provided for under this Lease shall be effected under valid enforceable policies issued by insurers of recognized responsibility and licensed to do business in the State of Florida. Certified copies of all and certificates of such ~~insurnaees~~insurances shall be delivered to Landlord, Leasehold Mortgagee and Fee Mortgagee at least ten (10) days prior to the expiration date of any policy, the original renewal policy for such insurance shall be delivered by Tenant to the holder of the expiring original policy, and certificates thereof shall be delivered as aforesaid, together with satisfactory evidence of payment of the premium on such policy. All such policies shall contain a non-cancellation clause except upon thirty (30) days prior written notice to each named insured and loss payee.

Section 8.3 All policies of insurance required under this Lease shall name Landlord and Tenant as the insureds as their respective interests may appear. All policies shall also provide, if required by either Landlord or Tenant, for any loss thereunder to be payable to the holder of any Fee Mortgage and the holder of any Leasehold Mortgage, as the respective interests of such holders may appear, pursuant to a standard mortgagee clause or endorsement. The loss, if any, under the policies, shall be adjusted with the insurance companies by Tenant, except that in case of any particular casualty resulting in damage or destruction exceeding \$500,000.00 in the aggregate, no adjustment shall be made with the insurance companies without the prior approval of Landlord, unless an Institutional Leasehold Mortgagee shall have approved the amount of the adjustment, in which event Landlord’s prior approval shall not be required. Any and all proceeds of insurance shall be used only to repair, replace or pay for the items so insured.

Section 8.4 The loss, if any, under all policies above shall be payable to Tenant and the Institutional Leasehold Mortgagee holding the first Leasehold Mortgage, or if there is none, to a bank or trust company, as insurance trustee, to be designated by Tenant in a notice given to the insurance companies and to Landlord promptly following the occurrence of the casualty, which bank or trust company shall have an office in Miami-Dade County.

Section 8.5 Nothing in this Article shall prevent Tenant from taking out insurance as required herein under a blanket insurance policy or policies that can cover other properties owned or operated by Tenant, as well as the Improvements; provided, however, that any such policy of blanket insurance (i) shall specify therein (or Tenant shall furnish Landlord and the holder of any Fee Mortgage and Leasehold Mortgage with a written statement from the insurers under such policies specifying) the amount of the total insurance allocated to the Improvements, which amount shall be not less than the amount required to be carried herein, and (ii) shall not contain any clause that would result in the insured thereunder being required to carry insurance with respect to the property covered thereby in an amount not less than any specific percentage of the full insurable value of such property in order to prevent the insured therein named from becoming a co-insurer of any loss with the insurer under such policy.

Section 8.6 Tenant agrees to pay, and to protect, defend, indemnify and save harmless Landlord from and against, any and all liabilities, damages, costs, expenses (including, but not limited to, any and all reasonable attorneys' fees and expenses of Landlord, including any on appeal), causes of action, suits, claims, demands or judgments of any nature whatsoever arising from (i) any work or thing done during the Term in, on or about the Real Estate or any part thereof by Tenant or its employees, invitees or agents, (ii) injury to or death of persons, or damage to property, during the Term at the Real Estate growing out of or connected with the use, condition, operation, maintenance, management or occupation of the Real Estate, ~~excepting however, any such injury, death or damage as may be the result of Landlord's gross negligence or willful misconduct,~~ (iii) any negligence on the part of Tenant or any of its agents, contractors, servants, employees or invitees, and (iv) any failure on the part of Tenant to perform or comply with the covenants, agreements, terms, provisions, conditions or limitations contained in this Lease on its part to be performed or complied with; provided, that in no event shall Tenant be responsible for defending, indemnifying or holding harmless Landlord to the extent any liabilities, damages, costs, expenses (including, but not limited to, any and all reasonable attorneys' fees and expenses including any on appeal), causes of action, suits, claims, demands or judgments of any nature are caused by, arises from or is contributed to by Landlord's gross negligence or willful misconduct.

In case any action or proceeding is brought against Landlord by reason of any such claim, Tenant shall, upon written notice from Landlord and at Tenant's expense, resist or defend such action or proceeding. If Tenant has supplied Landlord with evidence of insurance covering any of the aforementioned risks, no claims shall be made against Tenant unless and until the insurer shall fail or refuse to defend and/or pay all or any part thereof.

ARTICLE 9

Repairs and Maintenance

Subject to the provisions of Article 3 of this Lease, Tenant covenants throughout the Term, at its sole cost and expense, **to make all repairs and replacements and** to take care of the Improvements as now existing or in the future altered or replaced and all fixtures located or to be

located therein, and to keep the same in reasonably good order and condition, except only for wear and tear incident to the ordinary use for the purposes permitted in this Lease. Tenant shall make all repairs to the Improvements that are necessary to comply with the foregoing covenant.

ARTICLE 10

Compliance with Law; Environmental Matters

Section 10.1 Tenant shall at its sole cost and expense comply in all material respects with all Legal Requirements provided that nothing contained herein or in any other provision of this Lease shall prevent Tenant from contesting such Legal Requirements to the full extent permitted by law. Tenant shall comply in all material respects with the requirements of all policies of public liability, fire and other insurance at any time in force with respect to the Real Estate.

If no Hazardous materials when Tenant takes over, how can Landlord dispose?

Section 10.2 Landlord shall not dispose or knowingly permit the storage, disposal, escape or discharge of any Hazardous Materials (as hereinafter defined) on, in or about the Real Estate. In the event that Landlord, its agents, employees or contractors breaches the foregoing obligation, Landlord agrees to comply with any and all Legal Requirements relative to such Hazardous Materials, and that, in connection with the foregoing, if any clean-up or removal of such Hazardous Materials or any other remedial action is required, Landlord shall cause the same to be performed without expense to Tenant. Landlord agrees to indemnify and to hold Tenant harmless from any and all claims, demands, losses, liabilities, penalties, damages, costs and expenses, including without limitation, reasonable attorneys' fees and costs (collectively, "Claims") arising out of or in any way connected with the presence of Hazardous Materials on the Real Estate caused by Landlord's breach of the foregoing obligation. The indemnity obligations set forth herein shall survive the expiration or earlier termination of this Lease.

Section 10.3 Tenant shall not dispose or knowingly permit the storage, disposal, escape or discharge of any Hazardous Materials on, in or about the Real Estate. In the event any Hazardous Materials contaminate any portion of the Real Estate after the Effective Date and such contamination did not exist on or before the Effective Date, then, except as provided in Section 10.2, Tenant agrees to comply with any and all Legal Requirements relative to such Hazardous Materials, and that, in connection with the foregoing, if any clean-up or removal of such Hazardous Materials or any other remedial action is required, Tenant shall cause the same to be performed without expense to Landlord. Tenant agrees to indemnify and to hold Landlord harmless from any and all Claims arising out of in any way connected with the presence of any Hazardous Materials at the Real Estate caused by Tenant's breach of the foregoing obligation. The indemnity obligations set forth herein shall survive the expiration or earlier termination of the Lease.

Section ~~10.3~~ 10.4 For the purposes of this Section, Hazardous Materials shall include but not be limited to, substances defined, as "hazardous substances", "hazardous materials" or "toxic substances" in the Comprehensive Environmental Response, Compensation and Liability Act of

1980, as amended, 42 U.S.C. Section 9601, et. seq.; the Hazardous Materials Transportation Act, as amended, 49 U.S.C. Section 1801 et. seq.; the Resource Conservation and Recovery Act, as amended 42 U.S.C. Section 6901 et. seq. and any applicable state laws; and the regulations adopted and publications promulgated pursuant to said laws.

ARTICLE 11

Liens

Section 11.1 The Memorandum of Lease shall contain the appropriate clause under Chapter 713 of the Florida Statutes notifying third parties that they may not impose a lien on the Landlord's interest in the Real Estate for labor, services or materials furnished to, or at the request of, Tenant and any such liens are hereby prohibited. If notwithstanding said notice any third party files a lien purportedly against the Landlord's estate for or on account of labor, services or materials provided to or at the request of Tenant, Landlord will immediately provide Tenant with a copy thereof and Tenant will dispose of the claim and any ensuing litigation as Tenant deems appropriate at Tenant's expense, provided that if such party commences a foreclosure action with respect to such lien, Tenant shall transfer such lien to security as provided by Florida law or otherwise bond same within thirty (30) days thereafter to prevent the foreclosure of Landlord's estate. Tenant shall keep Landlord apprised of the status of the resolution of any such claim of lien and litigation.

ARTICLE 12

DAMAGE TO OR DESTRUCTION OF THE IMPROVEMENTS

~~Section 12.1 Tenant covenants that in case of damage to or destruction of the Improvements by fire or any other cause, similar or dissimilar, insured or uninsured, it will promptly, at its sole cost and expense, but subject to reimbursement to the extent provided in Article 8 below, restore, repair, replace or rebuild the Improvements as nearly as possible to the condition, quality and class it was in immediately prior to such damage or destruction, or with such changes or alterations as Tenant shall elect to make in conformity with Article 3 of this Lease. Such restoration, repairs, replacement or rebuilding shall be commenced promptly and prosecuted with reasonable diligence.~~

Section 12.1 [NEED TO DISCUSS-ONCE CONCEPTS ARE FINALIZED PROVISIONS WILL BE DRAFTED.]

- = If minor or major damage to Existing Improvements, Tenant shall not have obligation to repair the Existing Improvements and would move forward with the Project within the required timeframes and subject to force majeure.
- = If minor damage to Project, Tenant shall have the obligation to repair the Project.
- = If major damage to Project, Tenant shall have the right to either rebuild the Project for any purpose or if Tenant chooses to not rebuild, either Tenant or Landlord can terminate.

~~Section 12.2 If insurance proceeds, if any, recovered in respect of any insured damage or destruction, less any cost of recovery, shall be insufficient to pay the entire cost of such restoration, repairs, replacement or rebuilding, Tenant covenants to pay the deficiency.~~ ~~Section 12.3~~ Tenant's obligation to make payment of the basic rent and all other charges on the part of Tenant to be paid and to perform all other covenants and agreements on the part of Tenant to be performed shall not be affected by any such damage to or destruction of the Improvements and Tenant waives the provisions of any statute or law now or hereafter in effect contrary to such obligations of the Tenant as set forth in this Lease, or that relieves Tenant from such obligation.

ARTICLE 13

Condemnation

Section 13.1. If during the Term either the entire Real Estate shall be taken as a result of the exercise of the power of eminent domain, or a portion of the Real Estate shall be so taken such that the remaining portion cannot be practicably repaired, rebuilt or restored to ~~an economically useful unit as an office building~~ a complete architectural unit of substantially the same usefulness, design, construction, and commercial feasibility as immediately before such taking, this Lease shall terminate and all right, title and interest of Tenant hereunder shall cease and come to an end on the date of vesting of title pursuant to such eminent domain proceeding, and all rental and other sums payable by Tenant hereunder shall be prorated to the date of such vesting. ~~In the event of such taking, there shall first be paid to Landlord the entire award for, or attributable to the value of, the land (or that part of the land taken, if only part is taken) plus consequential damages, if any to the portion of the land not so taken, if any, the land to be valued as if unimproved and unencumbered by this Lease, any mortgage or otherwise; the landlord shall then receive compensation for the value of the improvements in an amount determined by multiplying the...~~

~~a) — The condemnation fraction shall mean a fraction, the numerator of which shall be the number of years that this Lease should have been in effect, and the denominator shall be 99 years. The Tenant should be entitled to any independent award related to Tenant's lease hold interest, including Tenant being entitled to make a claim for the value of Tenant's lease hold under this Lease, its portion of the condemnation fraction, any furniture, trade fixture, trade equipment and personal property belonging to the Tenant and not forming a part of the real estate or for the costs of moving the same, plus the amortized value of the improvements.~~ However, the foregoing shall not be deemed to adversely affect the Tenant's right to recover for the loss of the leasehold interest or its interest in the Improvements as a result of such condemnation. Any condemnation award shall be divided so that Tenant receives a portion of the award equal to the value of the Leasehold Estate as of the time of the taking, and Landlord receives the balance, if any, of the award.

Section 13.2. If during the Term there is a taking by exercise of the power of eminent domain of less than the entire Real Estate and the remaining portion can be practicably repaired, rebuilt ~~and restored to an economically useful unit as an office building or restored to a complete architectural unit of substantially the same usefulness, design, construction, and commercial feasibility as immediately before such taking~~, the Lease shall remain in full force and effect but the Base Rent shall be equitably adjusted as of the date of vesting title pursuant to the proceeding to reflect the proportionate value of the Real Estate so taken to the whole Real Estate. Tenant shall thereupon, at its sole cost and expense, proceed diligently to rebuild, replace and repair the Improvements as near as legally and structurally practicable to their former condition. All such rebuilding, replacing and repairing shall be carried out as an alteration in accordance with the provisions of this Lease. ~~Tenant shall claim~~Any condemnation award shall be divided so that Tenant receives a portion of the award equal to the value of the Leasehold ~~interest and restoration costs. Landlord shall claim the value of the portion of the Land taken, consequential damages and the Condemnation Fraction of any award exceeding the Tenant's restoration and cure costs. Estate as of the time of the taking, and Landlord receives the balance, if any, of the award.~~

Section 13.3. If all or any portion of the Real Estate shall be taken by the exercise of the right of eminent domain for governmental occupancy for a limited period, this Lease shall not terminate, and Tenant shall continue to perform and observe all of its obligations hereunder as though such taking had not occurred except only as to the extent that it may be prevented from so doing by reason of such taking. Tenant, however, shall not be excused from the payment of Base Rent and all other sums and charges required to be paid by Tenant under this Lease, provided that such payments shall be deferred until (i) the date Tenant receives the proceeds from such temporary taking, or (ii) one hundred twenty (120) days after the occurrence of the taking, whichever shall first occur, at which time all such deferred rent shall be due and payable. In the event of such a temporary taking, Tenant shall be entitled to receive the entire amount of any award made for such taking (whether paid by way of damages, rent or otherwise) and Landlord hereby assigns such award to Tenant unless the period of governmental occupancy extends beyond the termination of the Term of this Lease, in which case the award shall be apportioned between Landlord and Tenant as of the date of such termination and, in such apportionment, Landlord shall receive the full amount, if any, of any portion of said award which represents the cost of restoration at the termination of any such governmental occupancy. Tenant covenants that at the termination of any such governmental occupancy, it will, at its sole cost and expense, restore the building as nearly as may be reasonably possible to the condition in which the same was prior to such taking, but Tenant shall not be required to do such restoration work if on or prior to the date of such termination of governmental occupancy, the Term of this Lease shall have terminated, in which event Tenant shall not be entitled to any part of the award representing the cost of such restoration.

ARTICLE 14

Quiet Enjoyment

Landlord represents to Tenant that, so long as Tenant performs its obligations under this Lease, Tenant shall peaceably have and enjoy the Real Estate free from hindrance by anyone claiming by, through or under Landlord for the term of this Lease, subject to the terms of this Lease, and Landlord agrees to warrant and defend Tenant in the peaceful and quiet enjoyment of the Real Estate from the claims of all persons claiming by, through or under Landlord, so long as Tenant is not in default hereunder beyond the expiration of any grace periods.

ARTICLE 15

Surrender of Possession

Section 15.1 Tenant shall and will on the last day of the Term hereof or upon any earlier expiration or termination of this Lease, surrender and deliver up the Real Estate into the possession and use of Landlord without fraud or delay, **in good order and repair, reasonable wear and tear excepted** and, subject to the provisions of Articles 12 and 13 of this Lease, in the condition and repair required of Tenant hereunder.

Section 15.2 Upon the termination of this Lease, Tenant shall have the right and, at Landlord's option, the obligation to remove all Furniture and Equipment and other personalty whatsoever brought upon and/or installed upon the Real Estate by Tenant, provided that any damage caused by the removal of any permanently installed items shall be repaired by Tenant. Tenant shall also deliver to Landlord all leases, lease files, plans, records, registers and all other papers and documents that may be necessary or appropriate for the proper operation and management of the Land and Improvements, to the extent such papers and documents are in Tenant's possession or control.

Section 15.3 Any personal property of Tenant or any space lessee which shall remain on the Real Estate sixty (60) days after the termination or expiration of this Lease and the removal of Tenant or such space lessee from the Real Estate may, at the option of Landlord, be deemed to have been abandoned by Tenant or such space lessee and either may be retained by Landlord as its property or be disposed of without accountability, in such manner as Landlord may see fit.

Section 15.4 Landlord shall not be responsible for any loss or damage occurring to any property owned by Tenant, any space lessee or any occupant.

Section 15.5 The provisions of this Article 15 shall survive any termination or expiration of this Lease.

ARTICLE 16

Defaults and Remedies

Section 16.1 If any one or more of the following events (each an “Event of Default”) shall occur during the Term:

(a) Tenant shall default in the payment of the Base Rent or Additional Rent expressly reserved hereunder, or any part of the same, and such default shall continue for fifteen (15) days after written notice, or shall make default in the payment of any other charge required to be paid by Tenant hereunder or any part of the same, and such default shall continue for fifteen (15) days after written notice; ~~or~~

(b) Tenant shall default in fulfilling any of the covenants of this Lease (other than the covenant for the payment of the Rent, which is covered in (a) above) and Tenant shall fail to commence curing such default within thirty (30) days after written notice or to complete curing same within ninety (90) days after written notice, provided that if such default is curable but cannot be cured within a period of ninety (90) days, if Tenant fails to commence curing within said 30-day period and to prosecute such cure in good faith and with due diligence (it being intended that in connection with a default that is curable, but not susceptible of being cured within ninety (90) days, the time within which to cure the same shall be extended for such period as may be reasonably necessary to complete the same in good faith and with due diligence); or

(c) If any voluntary or involuntary proceedings are filed by or against the Tenant under any bankruptcy, insolvency or similar laws and, the same are not dismissed within 90 days after filing;

~~(d) If any execution, levy, attachment or other legal process of law shall occur upon Tenant's interest in the Real Estate, and same is not removed or bonded within 90 days after occurrence of the same.~~

~~In addition to any or all other rights or remedies of Landlord under this Lease or as otherwise permitted by law, without further notice or demand of any kind to Tenant or any other person, undertake the following remedies:~~ then and in any such event Landlord may, at its option, (i) if the default may be cured by payment of money, cure such default and collect the payment made from Tenant plus interest at the Interest Rate from the date due until paid as Additional Rent, or (ii) terminate this Lease by notice to Tenant specifying a termination date and the Term of this Lease shall expire as fully and completely on such date as if the date of such termination were the date originally fixed for the expiration of the Term, and upon such termination, Tenant shall pay to Landlord the Base Rent and all other charges required to be paid by Tenant up to the time of such termination of this

Lease and any actual damages incurred by Landlord, and Tenant shall quit and surrender the Real Estate to Landlord and shall have no further rights to same whatsoever. Landlord hereby waives any other rights and remedies that it may have at law or in equity by reason of an Event of Default. Landlord agrees that all notice and grace periods applicable to alleged defaults under this Section 16.1 (other than default in the payment of Base Rent and Additional Rent) shall be tolled in the event that Tenant challenges the existence of the alleged default in an arbitration proceeding until the date that the arbitrator renders a decision in the proceeding, at which time, if the Tenant is found to be in default, the cure period shall commence. [NOTE: This is market for ground leases; the language you added is more akin to space leases.]

~~(a) — Declare the Lease term ended and reenter the Real Estate and take possession thereof and remove all persons therefrom, and Tenant shall have no further claim thereon or thereunder; or~~

~~(b) — Without declaring this Lease ended to reenter the Real Estate and occupy the whole or any part thereof for and on account of Tenant and to collect the rent and any other charges that may thereafter become payable.~~

~~(c) — Even though Landlord may have reentered the Real Property, to thereafter elect to terminate this Lease and all of the rights of Tenant in or to the Real Property.~~

~~Section 16.2 Should Landlord have reentered the Real Property under the provisions above described, Landlord shall not be deemed to have terminated this Lease, or the liability of Tenant to pay rent thereafter to accrue, or its liability for damages under any of the provisions of this Lease, by any such reenter or eviction action, or otherwise, to obtain possession of the Real Estate, unless Landlord shall have notified Tenant in writing that it has so elected to terminate this Lease. Tenant further covenants that the service by Landlord of any notice pursuant to an eviction action and the surrender of possession pursuant to such notice shall not (unless Landlord elects to the contrary at the time of or at any time subsequent to the serving of such notices and such election is evidenced by a written notice to Tenant) be deemed to be a termination of this Lease. In the event of any entry or taking possession of the Real Estate as provided above, Landlord shall have the right, but not the obligation, to remove from the Real Estate all or any part of the personal property located therein and may place the same in storage at a public warehouse at the expense and risk of the owner or owners thereof.~~

~~Section 16.3 Should Landlord elect to terminate this Lease under the provisions of Section 16.1, above, Landlord may recover from Tenant as damages:~~

~~(a) — any unpaid rent that had been earned at the time of such termination; plus~~

~~(b) any other amount necessary to compensate Landlord for all damages proximately caused by Tenant's failure to perform its obligations under this Lease but not limited to, any costs or expenses incurred by Landlord in maintaining or preserving the Real Estate after such default, preparing the Improvements for reletting to a new tenant, any repairs or alterations to the Improvements for such reletting, leasing commissions, or any other costs necessary or appropriate to relet the Real Estate;~~

~~(c) or such other damages permitted by law. Section 16.4~~ All damages shall accrue interest at the Interest Rate from the date of the Event of Default.

Section 16.516.3 The failure of Landlord to insist upon a strict performance of any of the terms, conditions and covenants herein shall not be deemed to be a waiver of any rights or remedies that Landlord may have and shall not be deemed a waiver of any subsequent breach or default in the terms, conditions and covenants herein contained except as may be expressly waived in writing.

Section 16.616.4 In the event the Base Rent or Additional Rent is not received by Landlord within 10 days after the due date, Tenant shall pay Landlord a late fee equal to 5% of the amount due.

ARTICLE 17

Leasehold Mortgage

Section 17.1 Tenant, and any successor or assign of Tenant, may, without Landlord's consent, from time to time pledge, mortgage or encumber the Leasehold Estate demised hereunder, including, without limitation, in connection with construction of the Project. Any such pledge, mortgage or encumbrance upon the Leasehold Estate demised hereunder, as the same may be extended, modified, amended or replaced, is herein referred to as a "**Leasehold Mortgage**", the holder of which shall be referred to as the "**Leasehold Mortgagee**". Any Leasehold Mortgage shall by its terms be made expressly subject to all of Landlord's rights under the provisions, covenants, conditions, exceptions and reservations herein contained. Landlord shall not be bound to recognize any Leasehold Mortgagee or to give any Leasehold Mortgagee the notices, rights and protections contemplated under this Lease unless such Leasehold Mortgagee or Tenant shall have notified Landlord of the existence of such Leasehold Mortgage and of the name and United States address of such Leasehold Mortgagee.

Section 17.2 Landlord hereby agrees with and for the benefit of each Leasehold Mortgagee and the successors and assigns of each Leasehold Mortgagee:

(a) When giving notice to Tenant with respect to any default under this Lease or any exercise of any right to terminate this Lease, Landlord will also give a copy of such notice to each Leasehold Mortgagee at the address of each Leasehold Mortgagee furnished to Landlord, and no such notice to Tenant shall be deemed to have been duly

given nor shall such notice be effective unless such notice is also given in said manner to each such Leasehold Mortgagee.

(b) In case Tenant shall default in respect ~~to non-monetary default under~~ of any of the provisions of this Lease, any Leasehold Mortgagee shall have the right, but not the obligation, to cure such ~~non-monetary~~ default ~~for~~ whether the same consists of the failure to pay Base Rent or the failure to perform any ~~non-monetary~~ other covenant which Tenant is required to perform under this Lease, and Landlord shall accept performance by or on behalf of such Leasehold Mortgagee as though, and with the same effect as if, the same had been done or performed by Tenant. A Leasehold Mortgagee will have a period of time after the service of such notice upon it within which to cure the default specified in such notice, or cause it to be cured, which is the same period for cure, if any, as is given to Tenant under the Lease in respect of the specified default after the giving of such notice to Tenant, plus an additional period of thirty (30) days. In the event of a default (or in the event that Landlord is seeking to terminate this Lease by reason of a default) which is curable without Leasehold Mortgagee being in possession and control of the Improvements, but cannot reasonably be cured within said period, the period of time for cure shall be extended for so long as any Leasehold Mortgagee is diligently and continuously proceeding to attempt to cure such default, provided that the Leasehold Mortgagee has begun proceedings to cure the default within the said period. In no event shall a default due to a failure to pay Base Rent, Additional Rent or other amounts due hereunder be deemed a default which cannot be reasonably cured within the additional period of thirty (30) days granted to Leasehold Mortgagee under this paragraph.

(c) With respect to any nonmonetary default by Tenant under this Lease that is not susceptible of being cured by the Leasehold Mortgagee without being in possession and control of the Improvements, Landlord shall take no action to terminate this Lease on account of such default if, within ninety (90) days after notice of the default from Landlord (subject to any bankruptcy stays), the Leasehold Mortgagee shall have commenced appropriate proceedings to obtain possession of the Improvements (including possession by a receiver) or to foreclose the Leasehold Mortgage or otherwise to acquire Tenant's interest under this Lease and the Improvements, and shall thereafter be prosecuting the same to completion in good faith, with diligence and continuity (subject to any bankruptcy stays); provided, however, that: (i) the Leasehold Mortgagee shall not be obligated to continue any such possession or to continue such foreclosure proceedings or other action after the default shall have been cured; (ii) Landlord shall not be precluded from exercising any rights or remedies with respect to any other default by Tenant under this Lease during the pendency of such foreclosure proceedings; (iii) during the period of Landlord's forbearance, the Leasehold Mortgagee shall comply with such of the terms, covenants and conditions of this Lease as are then susceptible of compliance by the Leasehold Mortgagee; (iv) if and after the Leasehold Mortgagee obtains possession of the Improvements or acquires Tenant's interest under this Lease, the Leasehold Mortgagee shall promptly commence and diligently pursue the curing of all defaults under this

what defaults are not susceptible to being cured?

Lease: then susceptible of being cured by the Leasehold Mortgagee, and all other defaults of Tenant not then susceptible of being cured by the Leasehold Mortgagee shall be deemed to have been waived by Landlord upon completion of such foreclosure proceedings or acquisition by the Leasehold Mortgagee; and (v) if a third party acquires Tenant's interest under this Lease at the foreclosure sale, such party shall promptly commence and diligently pursue the curing of all defaults under this Lease then susceptible of being cured by such party, and all other defaults of Tenant not then susceptible of being cured by such party shall be deemed to have been waived by Landlord upon such acquisition.

(d) A Leasehold Mortgagee (or its designee or nominee) may become the legal owner and holder of the interest of Tenant under this Lease, including, without limitation, ownership of the Improvements, by foreclosure or other enforcement proceedings, or by obtaining an assignment of this Lease in lieu of foreclosure or through settlement of or arising out of any pending or threatened foreclosure proceeding, without Landlord's consent, subject always to the applicable terms and provisions of this Lease.

(e) Landlord agrees that in the event of termination of this Lease for any reason, that Landlord will enter into a new lease of the Real Estate with Leasehold Mortgagee or its designee for the remainder of the Term, effective as of the date of such termination, at the rent and upon the terms, provisions, covenants and agreements as herein contained, provided:

(i) Leasehold Mortgagee, or its designee, shall make written request upon Landlord for such new lease within thirty (30) days after Landlord has given Leasehold Mortgagee notice of such termination.

(ii) Said written request shall be accompanied by payment of all past due rents and other charges owing to Landlord hereunder of which Leasehold Mortgagee shall have been given notice, and, thereafter such monetary obligations shall be maintained current through the time of the execution and delivery of said new lease. Notwithstanding the foregoing, Landlord agrees that, as a condition to the new lease, Leasehold Mortgagee shall be obligated to pay past due rents only and not any rents that Landlord may have accelerated.

(iii) The lessee under such new lease shall automatically have the same right, title and interest in and to the Improvements as Tenant had under the terminated Lease.

(iv) Landlord shall pay the new lessee all rents, if any, collected by Landlord under subleases of the Real Estate during the interval following termination of this Lease and prior to the execution of the new lease.

(f) Landlord agrees, promptly after submission, to execute, acknowledge and deliver any agreements modifying this Lease requested by any Leasehold Mortgagee,

provided that such modifications do not decrease Tenant's obligations, or increase Tenant's rights, or decrease Landlord's rights, and provided that such modifications meet with the approval of Landlord, which approval shall not be unreasonably withheld or delayed.

(g) The provisions of this Article in favor of the Leasehold Mortgagee shall inure to the benefit of the Leasehold Mortgagee and its successors, assigns and designees, and also any other purchaser or transferee of this Lease pursuant to any foreclosure or bankruptcy proceedings, or assignment in lieu thereof.

(h) Notwithstanding any contrary provision of this Lease, the Leasehold Mortgagee shall not be liable or responsible in any respect for any of Tenant's obligations under this Lease unless and until the Leasehold Mortgagee becomes the owner and holder of this Lease through foreclosure or bankruptcy proceedings, or assignment in lieu thereof.

Can't accept. This cancels out bank's requirement to keep monetary obligations current

Section 17.3 Any notice or other communication which Landlord shall desire or is required to give to or serve upon Leasehold Mortgagee shall be in writing and shall be served personally or by overnight courier service (such as Federal Express or UPS) addressed to such Leasehold Mortgagee at its address as set forth in the notice to Landlord, or at such other address as shall be designated from time to time by such holder by notice in writing given to Landlord. Any notice or other communication which any Leasehold Mortgagee shall desire or is required to give to or serve upon Landlord shall be deemed to have been given or served if sent as set forth in the provisions of the Lease providing for notices to Landlord.

~~In the event of Tenant's monetary default or Tenant's obligation to pay government impositions and obligations to maintain insurance on the Improvements, the Leasehold Mortgagee shall cure such defaults and shall continue making such payments to Landlord, irrespective of any legal proceedings by Leasehold Mortgagee with reference to Tenant. Failure of the Leasehold Mortgagee to cure and make these payments shall be considered a forfeiture of all Leasehold Mortgagee rights under this Lease.~~ ← back-in

Section 17.4 Landlord will not modify, amend or accept a surrender of this Lease without the prior written consent of the Leasehold Mortgagee, which consent shall not be unreasonably withheld. Any such modification, amendment or surrender without the written consent of the Leasehold Mortgagee of which Landlord has been given notice shall be void and of no force or effect. Notwithstanding any provision in this Lease to the contrary, Landlord's right to terminate the Lease shall be limited by the provisions of Section 17.2 of this Article.

Section 17.5 Upon written request from Tenant, any sublessee, any Leasehold Mortgagee (prospective or current), or any subleasehold mortgagee (prospective or current), Landlord shall promptly, under documentation reasonably satisfactory to the requesting party: (a) agree directly with the applicable Leasehold Mortgagee that it may exercise against Landlord all Leasehold Mortgagee's rights in this Lease; ~~and (b)~~ (b) agree directly with the applicable subleasehold mortgagee that it may exercise against Landlord all subleasehold mortgagee's

SNDA only

rights in this Lease and the applicable sublease; and (c) amend this Lease and/or provide other assurances as any current or prospective lender reasonably requests, provided such amendment does not adversely affect Landlord, including reduction of any payment due Landlord or increase of any liability or obligation of Landlord.

ARTICLE 18

Assignment; Subleases

No assignment until project finished without Landlord's consent

Section 18.1 Provided that the Base Rent and Additional Rent are paid to date ~~and the construction of the Project has been completed and stabilized~~ and the assignee assumes the obligations of Tenant hereunder related to the time period from and after the assignment, Tenant, ~~5 years after the Effective Date,~~ may freely assign the Leasehold Estate and shall thereupon be relieved of any obligations arising hereunder from and after the date of the assignment. ~~No such assignment shall be effective for any purpose until i) the assignor's interest in the improvements shall be transferred through the assignee of this Lease; ii) there should be delivered to Landlord a duplicate original of the instrument or instruments of transfer of this Lease and the assignors interest in the improvements containing the name and address of the transferee and an instrument of assumption by the transferee of all of tenant's liabilities and obligations under this Lease.~~

Section 18.2 Tenant may sublet all or any portions of the Improvements without the consent of Landlord. Landlord agrees to grant recognition and non-disturbance agreements sublessees which provide that, in the event of a termination of this Lease which applies to the portion of the Real Estate covered by such sublease, such sublessee will not be disturbed and will be allowed to continue peacefully in possession under the terms and conditions of its sublease, provided that the following conditions are met: ~~(a) Sublessee shall make all rental payments to Landlord as per the terms of its Sublease, which rent shall not be less than~~ with respect to any sublease, such sublease shall include an equitable allocation of ~~the~~ Rent; (b) the sublessee shall not be in default of the terms and conditions of its sublease (as applicable) beyond applicable notice and cure periods; and (c) sublessee shall agree to attorn to Landlord. Tenant shall provide written notice to Landlord specifying the name and address of any sublessee that requires a recognition and non-disturbance agreement under this Section 18.2, which notice shall include a copy of the applicable sublease. Landlord agrees that it will grant such assurances to such sublessees so long as they remain in compliance with the terms of their subleases, and provided further that any such subleases do not extend beyond the expiration of the term of this Lease. To effectuate the intent of this Section 18.2, Landlord agrees to enter into recognition and non-disturbance agreements such form as may be reasonably acceptable to Landlord, Tenant and the sublessee within thirty (30) days following written request. Any and all subleases of the Real Estate may include lender protection provisions consistent with the provisions of this Lease that benefit Lenders, including without limitation Article 17 hereof.

ARTICLE 19

Sale or Assignment by Landlord; Right of First Refusal

Section 19.1 It is expressly understood and agreed that this Lease and all rights of Landlord hereunder shall be fully and freely assignable by Landlord, without the consent of Tenant. Any such transfer shall be expressly subject to this Lease, and the purchaser (including without limitation any sale pursuant to Section 19.2 below) or mortgagee shall acknowledge in writing that the Landlord's Estate is subject to this Lease and, with respect to a purchaser, that it assumes all the obligations and liabilities of the Landlord hereunder related to the time period from and after the transfer. In the event of any transfer or transfers of Landlord's interest in the Real Estate, ~~the transferor~~ Landlord shall be automatically relieved of any and all obligations on the part of Landlord arising after the date of transfer provided that ~~they~~ such obligations are assumed in writing by the transferee. Landlord and Tenant acknowledge and agree that Existing Mortgagee and Tenant entered into a Subordination, Non-Disturbance and Attornment Agreement on or immediately prior to the Effective Date.

~~Section 19.2 This Lease and Tenant's tenancy hereunder shall be subject and subordinate at all times to the lien of any Mortgage (as hereinafter defined) now or hereafter placed upon the interest of Landlord in the Real Estate, provided that the Mortgagee shall not disturb Tenant's right of occupancy of the Real Estate in accordance with the terms and provisions of this Lease and such Mortgagee provides a mutually reasonably satisfactory subordination and non-disturbance agreement to Tenant. Notwithstanding the foregoing, Tenant agrees to execute and deliver such mutually, reasonably satisfactory instruments as may be desired by Landlord or by any Mortgagee in order to carry out the intent of this Section 19.2.~~ ← Why not?

~~Section 19.3 In the event that Landlord sells, conveys, or otherwise transfers its interest in the Real Estate, whether voluntarily, involuntarily, by foreclosure (or by deed in lieu of foreclosure) of a Mortgage, or by operation of law, then this Lease shall remain in full force and effect and shall not be terminated, provided that with respect to any such transfer by foreclosure or deed in lieu of foreclosure, the terms of this Lease shall be subject to the terms of the applicable non-disturbance, subordination and attornment agreement, if any. Tenant hereby agrees that it will attorn to and recognize any successor to Landlord's interest in the Real Estate as the new Landlord under this Lease, and Tenant hereby covenants and agrees that it will execute any instruments reasonably required by such successor evidencing the same.~~ Section 19.4 For good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Landlord grants to Tenant the continuing right of first offer (the "First Offer Right") to purchase Landlord's Estate or a majority ownership interest in Landlord during the Term. In the event that Landlord desires to sell the Landlord's Estate or a majority ownership interest in Landlord, Landlord shall give written notice (the "Offer Notice") of such desire to Tenant stating the price at which it desires

← why not?

to sell same (the "Offer Price") and any other material terms and conditions of such proposed sale (the "Offer Terms").

90 days

If Tenant desires to exercise its First Offer Right, Tenant shall deliver written notice (the "Acceptance Notice") to Landlord within ~~ninety (90)~~ one hundred twenty (120) days following Tenant's receipt of the Offer Notice, and the closing shall be as specified in the Offer Terms. In the event that Tenant has not delivered an Acceptance Notice prior to the expiration of such ~~90~~120-day period, or Tenant is unable to close in accordance with the Offer Terms, then Landlord shall thereafter have a period of twelve (12) months to sell the Landlord's Estate or a majority ownership interest in Landlord for any price equal to or greater than the Offer Price and according to terms that do not materially deviate from the Offer Terms; provided, however, that any change in terms or concession on costs, timing or expenses that do not reduce the overall economic consideration of the transaction (i.e. reduce the cost to Tenant) by more than two (2%) percent shall not be considered a material deviation and shall not require a re-offer to Tenant. In the event that Landlord fails to close on such third-party sale within said 12-month period or in the event of a material deviation from the Offer Terms, Landlord shall not be permitted to sell the Landlord's Estate or such majority interest without first re-offering same to Tenant in accordance with the provisions of this Section 19.2. Failure by Tenant, on any given occasion, to exercise the foregoing right of first refusal shall not be deemed to preclude Tenant from exercising such right on any subsequent given occasion. The First Offer Right shall survive any transfer(s) of the Landlord's Estate or majority interest in Landlord. However, in addition to the forfeiture of any deposits made by Tenant pursuant to the Offer Terms the First Offer Right shall permanently terminate and be of no further force or effect if, having furnished an Acceptance Notice, Tenant thereafter defaults in its obligation to close the transaction without a default by Landlord.

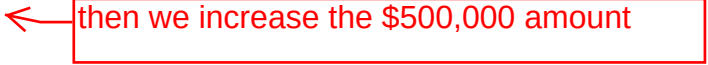
ARTICLE 20

Existing Mortgage

Landlord represents and warrants to Tenant that (a) prior to the Effective Date Landlord provided to Tenant true, correct and complete copies of the Existing Mortgage and all Existing Loan Documents, (b) Landlord is not in default of its obligations under the Existing Mortgage or the Existing Loan Documents, (c) Landlord shall not be permitted to modify the Existing Mortgage or the Existing Loan Documents, without Tenant's prior written consent, and (d) Landlord shall comply with all obligations under the Existing Mortgage and the Existing Loan Documents. In the event that either (x) the Existing Mortgagee refuses to execute a Subordination, Non-Disturbance and Attornment Agreement and/or an intercreditor agreement, each in form and substance reasonably acceptable to any Leasehold Mortgagee, including, without limitation, any construction lender in connection with construction of the Project, or (y) a Leasehold Mortgagee, including, without limitation, any construction lender in connection with construction of the Project, refuses to allow the Existing Mortgage to remain an encumbrance upon the Real Estate, then, within thirty (30) days following receipt of written notice from Tenant, Landlord shall cause the Existing Mortgage and the Existing Loan Documents to be paid in full and satisfied of record.

ARTICLE 21

Early Termination Right

Tenant shall have a period of six (6) months following the Effective Date (the “**Building Permit Expiration Date**”) to obtain a Building Permit from the City of South Miami, Florida. In the event that the Building Permit is not issued by the initial Building Permit Expiration Date, Tenant shall have the right to extend the Building Permit Expiration Date for up to twelve (12) months by paying to Landlord, in advance, monthly extension payments of \$25,000 for each of the first six (6) months and \$50,000 for each of the second six (6) months, on or prior to the then Building Permit Expiration Date (as extended). In the event the Building Permit is not issued by the Building Permit Expiration Date (as extended for up to twelve (12) months), then either Landlord or Tenant shall have the right to terminate the Lease by providing written notice to the other party on or prior to the date that is fifteen (15) days following the Building Permit Expiration Date (as extended), in which event (a) the Escrow Agent shall deliver the total Escrowed Funds of \$500,000.00 to Landlord; (b) Tenant shall pay to Landlord the Base Rent and all other charges required to be paid by Tenant up to the time of such termination of this Lease, and (c) Tenant shall quit and surrender the Real Estate and Existing Improvements to Landlord and shall have no further rights to same whatsoever; ~~and (d) Tenant shall indemnify Landlord for any damages, delayed maintenance or restoring the condition of the Real Estate to the condition it was prior to the Effective Date herein. Any liens, encumbrances, restorations, covenants, dedications, easements of any kind imposed on the Land during Tenant’s period of control shall be released or vacated.~~ 

ARTICLE 22

No Merger

There shall be no merger of this Lease or of the Leasehold Estate hereby created with the Landlord’s Estate or any part thereof by reason of the fact that the same person may acquire or hold, directly or indirectly, this Lease or the Leasehold Estate hereby created or any interest in this Lease or in such Leasehold Estate as well as the Landlord’s Estate or any interest in such fee estate.

ARTICLE 23

Notices

Any and all information, notices or demands herein required or provided for shall be delivered personally by hand delivery service, by overnight courier service (such as Federal Express or UPS) or certified mail, return receipt requested (postage prepaid) to the following addresses or electronic mail (so long as simultaneously sent pursuant to another approved method):

If to Landlord:

Sunset-Miami Investments, Inc.

1313 Ponce de Leon Boulevard, Suite 200
Coral Gables, Florida 33134
Attention: G. Frank Quesada, Esq.
Email: gfq@gvlaw.net ↩ gfq@qvlaw.net

With a copy to: Teresa Sordo
P.O BOX 1044
Mayaguez, P.R. 00681
E-mail: tsordo1@hotmail.com
If to Tenant: c/o ALTA Developers
2950 SW 27th Avenue, Suite 220
Miami, Florida 33133
Attention: Henry Pino
Email: hpino@altadevelopers.com

with a copy to: Law Offices of Patricia O. Espinosa, P.A.
2950 SW 27th Avenue, Suite 210
Miami, Florida 33133
Attention: Patricia O. Espinosa, Esq.
Email: patty@pespinosalaw.com

with a copy to: Greenberg Traurig, P.A.
333 SE 2nd Avenue
Miami, Florida 33131
Attention: Kimberly S. LeCompte, Esq.
Email: lecomptek@gtlaw.com

Either party may at any time hereafter by giving written notice to the other party as above provided, change its address for notices or demands or the name of the person to whom notices or demands may be sent. All notices shall be deemed given when the initial attempted delivery is refused (or unavailable due to an unnoticed change of address) or when received, and the usual receipt (which need not be signed by the individual addressees) shall be evidence of delivery.

ARTICLE 24

Estoppel Certificates

Landlord and Tenant agree that, at any time and from time to time during the Term of this Lease, within ten (10) days after request by the other, Landlord or Tenant, as applicable, will execute, acknowledge and deliver to the other or to any prospective purchaser, assignee or mortgagee designated by the other, a certificate stating (a) that this Lease is unmodified and in force and effect (or if there have been modifications, that this Lease is in force and effect as modified, and identifying the modification agreements); (b) the date to which rent has been paid; (c) whether or not there is any existing default by Tenant in the payment of any Base Rent,

Additional Rent or other sum of money hereunder, and whether or not there is any other existing default by either party hereto, and, if there is any such default, specifying the nature and extent thereof; (d) whether or not there are any setoffs, defenses, or counterclaims against enforcement of the obligations to be performed hereunder existing in favor of the party executing such certificate; and (e) any other information relating to this Lease reasonably requested by the other.

ARTICLE 25

Arbitration

Any dispute hereunder which is expressly stated to be resolved under this arbitration provision, shall be referred to and exclusively and finally settled by binding arbitration, conducted in accordance with the American Arbitration Association Arbitration Rules for the Real Estate Industry (or the Commercial Arbitration Rules, if the Rules for the Real Estate Industry are no longer applicable, or similar successor rules thereto). The place of arbitration shall be Miami, Florida. In the event that either party calls for a determination in arbitration pursuant to the terms of this Lease, the parties shall have a period of ten (10) days from the date of such request to mutually agree on one arbitrator who, at a minimum, must be an attorney with at least ten (10) years experience practicing commercial real estate law in Miami-Dade County, Florida. If the parties fail to agree, each party shall have an additional ten (10) days to each select an individual meeting the same minimum qualifications set forth above, and the two arbitrators selected shall select a third arbitrator to be the arbitrator for the dispute in question. If either party fails to make its respective selection of an arbitrator within the additional 10-day period provided for above, then the other party's selection shall be the arbitrator.

The arbitrator shall decide the issues submitted to him/her in accordance with (i) the language, commercial purpose and restrictions contained in this Lease and the exhibits hereto and (ii) what is just and equitable under the circumstances, provided that all substantive issues shall be determined under the laws of Florida. With respect to any arbitration proceeding hereunder, the following provisions shall apply:

(a) Landlord and Tenant shall cooperate with one another in the production and discovery of requested documents, and in the submission and presentation of arguments to the arbitrator at the earliest practicable date; and the decision of the arbitrator shall be conclusive and binding upon them.

(b) The arbitrator conducting any arbitration shall be bound by the provisions of this Lease and shall not have the power to add to, subtract from or otherwise modify such provisions.

(c) Landlord and Tenant hereby renounce all recourse to litigation with respect to the matters in this Lease which direct the dispute in question to be resolved under this arbitration provision, and agree that, with respect to such matters only, (i) no reference shall be made to any court on any point of law and (ii) that the ruling and award (if any) of the arbitrator shall be final and subject to no judicial review.

Judgment on the award of the arbitrator may be entered in any court having jurisdiction over the party against which enforcement of the award is being sought, and any party may institute judicial proceedings to compel arbitration in accordance with the provisions hereof.

(d) The prevailing party in any arbitration proceeding arising out of this Lease shall be entitled to recover all costs of arbitration, including reasonable attorneys' fees, incurred in conducting the arbitration, and the arbitrator shall make such an award.

Notwithstanding any provision herein to the contrary, under no circumstances shall a monetary Event of Default (i.e. Tenant's failure to pay Base Rent or any other Rent payable under this Lease and such failure continues beyond any applicable cure period) be subject to arbitration.

ARTICLE 26

LANDLORD'S RIGHT TO PERFORM TENANT'S COVENANTS ~~ADDITIONAL RENT~~

Tenant covenants and agrees that if, after expiration of the notice and grace periods set forth herein, it shall fail (i) to pay any imposition, in accordance with the provisions of Article 6, or (ii) to take out, pay for, maintain or deliver any of the ~~required~~ insurance policies, provided for in Article 8, or (iii) fail to cause any lien of the character referred to in Article 11 to be discharged as provided therein, or (iv) shall fail to perform any other act on its part to be performed, then Landlord may (but shall not be obligated to) and without further notice or demand upon Tenant and without waiving or releasing Tenant from any obligations of Tenant contained in this Lease ~~contained~~, (a) pay any imposition payable by Tenant, pursuant to the provisions of Article 6, or (b) take out, pay for and maintain any of ~~its~~ the insurance policies, provided for in Article 4, or (c) discharge any lien of the character referred to in Article 11 as provided therein, or (d) perform any other act on Tenant's part to be performed as provided in this Lease; provided, however, that so long as a Leasehold Mortgage shall be outstanding, ~~(i)~~ Landlord shall not take any action of the character specified in the foregoing clauses (a), (b), (c), or (d) (except in the case of an emergency) until after the expiration of the time set forth in Section 17.2 after the notice specified therein has been given to the Leasehold Mortgagee.

ARTICLE 27

INDEMNIFICATION OF LANDLORD

~~Section 27.1 Tenant agrees to indemnify and save harmless Landlord against and from any and all claims by or on behalf of any person arising from the conduct or management of or from any work or thing whatsoever done in and in the Real Estate and will further indemnify and save Landlord harmless against and from any and all claims arising during the term of this Lease from any condition of the Real Estate or any street, curb, or sidewalk adjoining the Real Estate, or passageways or space therein or appurtenant thereto, or arising from any breach or default on the part of Tenant in the performance of any~~

why not ↗

~~covenant or agreement on the part of Tenant to be performed pursuant to this Lease, or arising from any act or negligence of Tenant or any subtenant or occupant of the Real Estate or any part thereof, or of its or their agents, contractors, servants, employees or licensees, or arising from any accident, injury or damage whatsoever caused to any person or property occurring during the term of this Lease in or about the Real Estate, and from and against all judgments, costs, expenses and liabilities incurred in or about any such claim or action or proceeding brought therein; and in case any action or proceeding is brought against Landlord by reason of any such claims, Tenant upon notice from Landlord covenants to resist or defend such action or proceeding by counsel reasonably satisfactory to Landlord.~~

ARTICLE 28

REPRESENTATIONS

~~Section 28.1~~ 27.1 Except as set forth in that certain Agreement for Lease dated as of August 22, 2017 (the "Agreement for Lease") by and between Landlord and Tenant, Landlord hereby disclaims any warranty, guaranty or representation of the nature and condition of the Real Estate and Existing Improvements, including (but not by way of limitation) the soil and geology and suitability thereof for any and all activities and uses that Tenant may elect to conduct thereon at any time during the Lease term, the manner of construction and the conditions and state of repair or lack of repair of all improvements located thereon, and the nature and extent of the rights of others with respect to the Real Estate, whether by way of easement, right of way, lease, possession, lien, encumbrance, license, reservation, condition or otherwise.

~~Section 28.2~~ 27.2 Except as set forth in the Agreement for Lease, Tenant does hereby acknowledge, represent and warrant to Landlord that Tenant is leasing the Real Estate in its "AS-IS" condition, and Tenant has undertaken all such inspections and investigations of the Real Estate and the Existing Improvements as Tenant deems necessary or appropriate under the circumstances as to the condition of the Real Estate and the suitability of the Real Estate for Tenant's intended use, and based upon same, Tenant is relying solely upon such inspections and examinations and the advice and counsel of its own consultants, agents, and legal counsel.

ARTICLE 29

CUMULATIVE REMEDIES — NO WAIVER — NO ORAL CHANGE

~~Section 29.1~~ 28.1 The specified remedies to which Landlord may resort under the terms of this Lease are cumulative and are not intended to be exclusive of any other remedies or means of redress to which Landlord may be lawfully entitled in case of any breach or threatened breach by Tenant of any provision of this Lease. The failure of Landlord to insist in any one or more cases upon the strict performance of any of the covenants of this Lease or to exercise any option contained in this Lease shall not be construed as a waiver or a relinquishment for the future of such covenant or option. A receipt by Landlord of rent with knowledge of the breach of any covenant of this Lease shall not be deemed a waiver of such breach, and no waiver by Landlord of any provision

of this Lease shall be deemed to have been made unless expressly in writing and signed by Landlord. In addition to the other remedies provided in this Lease, Landlord shall be entitled to the restraint by injunction of the violation, or attempted or threatened violation, of any of the covenants, conditions or provisions of this Lease.

Section ~~29.2~~28.2 This Lease cannot be changed orally, but only by an agreement in writing signed and acknowledged by Landlord and Tenant.

ARTICLE ~~30~~29 **Miscellaneous**

Section ~~30.1~~29.1 The parties hereto agree that all of the terms, covenants and provisions hereof shall be covenants running with the Land and shall be binding upon and shall inure to the benefit of the parties hereto and their respective grantees, successors and assigns.

Section ~~30.2~~29.2 The headings of the several Articles of this Lease are for convenience only and do not define, limit or construe the contents of the Articles. All references in this Lease to Exhibits, Sections, Articles and paragraphs refer to the respective provisions of this Lease, unless the reference expressly identifies another document.

Section ~~30.3~~29.3 This Lease shall not be recorded, but a Memorandum of Lease in the form attached as Exhibit "C" shall be executed simultaneously herewith and recorded by Tenant.

Section ~~30.4~~29.4 Each and every covenant and agreement contained in this Lease shall be for all purposes construed to be a separate and independent covenant and agreement and the breach of any covenant or agreement contained herein by Landlord shall in no wise or manner discharge or relieve Tenant from Tenant's obligation to perform each and every covenant and agreement contained herein. If any term or provision of this Lease or the application thereof to any person or circumstance shall to any extent be invalid or unenforceable, the remainder of this Lease, or the application of such term or provision to persons or circumstances other than those as to which it is invalid or unenforceable, shall not be affected thereby, and each term and provision of this Lease shall be valid and shall be enforced to the fullest extent permitted by law.

Section ~~30.5~~29.5 The Lease shall be governed by, and construed and enforced in accordance with, the laws of the State of Florida.

Section ~~30.6~~29.6 Time is of the essence of all the terms, provisions, covenants and conditions of this Lease.

Section ~~30.7~~29.7 Submission of this instrument for examination does not constitute an offer, right of first refusal, reservation of or option for the Land. This instrument becomes effective as a Lease only upon execution and delivery by both Landlord and Tenant.

Section ~~30.8~~29.8 Radon is a naturally occurring radioactive gas that, when it has accumulated in a building in sufficient quantities, may present health risks to persons who are exposed to it over time. Levels of radon that exceed federal and state guidelines have been found in buildings in Florida. Additional information regarding radon testing may be obtained from your county Public Health Unit. Section 404.056(8), Florida Statutes (1995).

Section ~~30.9~~29.9 This Lease contains the entire agreement between Landlord and Tenant and all previous negotiations leading thereto, and this Lease may be modified only by an agreement in writing signed by Landlord and Tenant. Any formally executed addendum to or modification of this Lease shall be expressly deemed incorporated by reference herein unless a contrary intention is clearly stated therein.

Section ~~30.10~~29.10 Landlord hereby waives any right to a statutory or contractual landlord's lien (but not any post-judgment judgment liens) against the Furniture and Equipment and/or any other items of personal property which are now located or may hereafter be delivered or installed upon the Real Estate. This waiver shall be self-operative without the execution of further instruments. However, if requested by any party extending credit to Tenant secured by any property on which Landlord would otherwise have a right to a landlord's lien but for the above waiver, Landlord shall confirm in writing to such party that Landlord waives and does not have rights to a lien against such property.

Section ~~30.11~~29.11 In the event either party hereto is delayed in the performance of any act required hereunder by reason of a Force Majeure delay, excepting only Tenant's Monetary Obligations, then performance of such act shall be excused for the period of the Force Majeure and the period for the performance of such act shall be extended for a period equivalent to the period of the Force Majeure.

Section ~~30.12~~29.12 The parties waive trial by jury in any action, proceeding or counterclaim brought by either of the parties hereto against the other for any matter whatsoever arising out of or in any way connected with this Lease.

Section ~~30.13~~29.13 This Lease may be executed in any number of counterparts, each of which shall be deemed an original, but all such counterparts shall constitute but one instrument.

Section ~~30.14~~29.14 In the event of any litigation ensuing or growing out of the terms of this Lease, the prevailing party shall be entitled to recover all costs incurred, including reasonable attorneys' fees at all tribunal levels.

Section ~~30.15~~29.15 Landlord's liability under this Lease shall be limited to its interest in Landlord's Estate.

Section ~~30.16~~29.16 Landlord and Tenant shall each execute and deliver to the other such documentation as the parties' legal counsel may deem reasonably necessary to evidence the authority of the officer's executing this Lease on behalf of Landlord and Tenant.

[the remainder of this page is intentionally left blank]

IN WITNESS WHEREOF, Landlord and Tenant have caused this instrument to be duly executed as of the day and year first above written.

Signed in the presence of:

SUNSET-MIAMI INVESTMENTS, INC., a
Florida corporation

Print Name:

By: _____
Name:
Title:

Print Name:

_____, a _____

Print Name:

By: _____
Name:
Title:

Print Name:

EXHIBIT "A"

Legal Description of Land

All of Tract A, less the East 118 feet of the North 129.07 feet, in Block 1, and Lot 3, in Block 1, of ROSSWOOD, according to the Plat thereof, recorded in Plat Book 13, at Page 62, in the Public Records of Miami-Dade County, Florida, less the South 25 feet of said Block 1.

EXHIBIT "B"

MIA 186457399v2

MIA 186457399v34

EXHIBIT “B”

Permitted Exceptions

1. Taxes and assessments for the year 2018 and subsequent years, which are not yet due and payable.
2. **[NTD: SUBJECT TO REVIEW OF UPDATED TITLE COMMITMENT]**

NOTE: All of the documents listed above which reference recording information have been recorded in the Public Records of Miami-Dade County.

Document comparison by Workshare 9.5 on Monday, May 14, 2018 1:41:08 PM

Input:	
Document 1 ID	interwovenSite://DMS-FLORIDA/MIA/186457399/3
Description	#186457399v3<MIA> - ALTA - 6075 Sunset Drive - Ground Lease
Document 2 ID	interwovenSite://DMS-FLORIDA/MIA/186457399/4
Description	#186457399v4<MIA> - ALTA - 6075 Sunset Drive - Ground Lease
Rendering set	GT-1

Legend:	
<u>Insertion</u>	
Deletion	
Moved from	
<u>Moved to</u>	
Style change	
Format change	
Moved deletion	
Inserted cell	
Deleted cell	
Moved cell	
Split/Merged cell	
Padding cell	

Statistics:	
	Count
Insertions	116
Deletions	133
Moved from	0
Moved to	0
Style change	0
Format changed	0
Total changes	249